



Telecommunications (Listed Infringement Notice Provisions) Declaration 2022

made under subsection 572E(7) of the

Telecommunications Act 1997

Compilation No. 1

Compilation date: 30 July 2022

Includes amendments up to: F2022L01023

Prepared by the Australian Communications and Media Authority, Melbourne

About this compilation

This compilation

This is a compilation of the *Telecommunications (Listed Infringement Notice Provisions) Declaration 2022* that shows the text of the law as amended and in force on 30 July 2022 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Federal Register of Legislation (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Federal Register of Legislation for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Federal Register of Legislation for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Part 1 - Preliminary

1 Name

This is the *Telecommunications (Listed Infringement Notice Provisions) Declaration 2022*.

2 Commencement

This instrument commences at the start of the day after the day it is registered on the Federal Register of Legislation.

Note: The Federal Register of Legislation may be accessed free of charge at www.legislation.gov.au

3 Authority

This instrument is made under subsection 572E(7) of the *Telecommunications Act 1997*.

4 Repeal of the *Telecommunications (Listed Infringement Notice Provisions) Declaration 2011*

The *Telecommunications (Listed Infringement Notice Provisions) Declaration 2011* (Registration No. F2011L02374) is repealed.

5 References to other instruments

In this instrument, unless the contrary intention appears:

- (a) a reference to any other legislative instrument is a reference to that other legislative instrument as in force from time to time; and
- (b) a reference to any other kind of instrument is a reference to that other instrument as in force from time to time.

Note 1: For references to Commonwealth Acts, see section 10 of the *Acts Interpretation Act 1901*; and see also subsection 13(1) of the *Legislation Act 2003* for the application of the *Acts Interpretation Act 1901* to legislative instruments.

Note 2: For references to instruments that are not legislative instruments, see subsection 589(2) of the *Telecommunications Act 1997*.

Note 2: All Commonwealth Acts and legislative instruments are registered on the Federal Register of Legislation.

Part 2 - Declarations

6 Declaration – Act provisions

For paragraph 572E(7)(a) of the *Telecommunications Act 1997*, each provision specified in Schedule 1 is a listed infringement notice provision.

7 Declaration – Determination provisions

For paragraph 572E(7)(c) of the *Telecommunications Act 1997*, each provision specified in Schedule 2 is a listed infringement notice provision.

Schedule 1 Act provisions

(section 6)

- 1 Provisions of the *Telecommunications Act 1997*:
 - (a) subsection 69(4);
 - (b) subsection 102(4);
 - (c) section 308;
 - (d) paragraph 360H(2)(d);
 - (e) paragraph 360H(2)(e);
 - (f) paragraph 360H(4)(d);
 - (g) paragraph 360H(4)(e);
 - (h) subsection 360H(8);
 - (i) subsection 360H(9);
 - (j) paragraph 360HA(1)(c);
 - (k) paragraph 360HA(1)(d);
 - (l) paragraph 360HA(3)(c);
 - (m) paragraph 360HA(3)(d);
 - (n) subsection 360LA(1);
 - (o) subsection 360LA(2);
 - (p) subsection 360P(1);
 - (q) subsection 360P(8);
 - (r) subsection 360P(9);
 - (s) subsection 360P(11A);
 - (t) paragraph 360P(12)(c);
 - (u) paragraph 360P(12)(d);
 - (v) subsection 360Q(1);
 - (w) subsection 360Q(9);
 - (x) subsection 360Q(10);
 - (y) subsection 360R(2);
 - (z) subsection 360R(3);
 - (za) subsection 360W(1);
 - (zb) subsection 360W(2)
 - (zc) subsection 360X(1);
 - (zd) subsection 360X(2);
 - (ze) subsection 462(1);
 - (zf) subsection 521(3);
 - (zg) section 530;
 - (zh) subclause 10(2) of Schedule 2;
 - (zi) subclause 11(2) of Schedule 2.
- 2 Provisions of the *Telecommunications (Consumer Protection and Service Standards) Act 1999*:
 - (a) subsection 12EB(4);
 - (b) subsection 12EC(9);
 - (c) subsection 12ED(4);

- (d) subsection 12EE(9);
 - (e) subsection 12EF(2);
 - (f) subsection 12EG(3);
 - (g) subsection 12EH(2);
 - (h) subsection 12EI(6);
 - (i) subsection 43(1);
 - (j) subsection 117A(1);
 - (k) subsection 117A(3);
 - (l) subsection 117A(4);
 - (m) subsection 117A(5);
 - (n) subsection 117C(2);
 - (o) subsection 117F(2);
 - (p) subsection 130(2);
 - (q) section 132.
- 3 Provisions of the *Telecommunications (Interception and Access) Act 1979*:
- (a) subsection 187A(1);
 - (b) subsection 196(1);
 - (c) subsection 196(3);
 - (d) subsection 197(1);
 - (e) subsection 197(3);
 - (f) subsection 198(4);
 - (g) subsection 198(7);
 - (h) section 200;
 - (i) subsection 201(1).

Schedule 2 Determination provisions

(section 7)

- 1 Provisions of the *Telecommunications (Service Provider – Identity Checks for Prepaid Mobile Carriage Services) Determination 2017*:
 - (a) subsection 2.3(1);
 - (b) subsection 6.1(1);
 - (c) subsection 6.1(2);
 - (d) section 6.3;
 - (e) subsection 6.4(1);
 - (f) subsection 6.4(4).
- 2 Provisions of the *Telecommunications Service Provider (NBN Service Migration) Determination 2018*:
 - (a) subsection 7(2);
 - (b) subsection 7(3);
 - (c) subsection 7(4);
 - (d) subsection 9(1);
 - (e) subsection 10(1);
 - (f) subsection 10(2);
 - (g) subsection 10(3);
 - (h) section 11;
 - (i) subsection 12(1);
 - (j) section 13;
 - (k) subsection 14(2);
 - (l) subsection 14(3);
 - (m) subsection 15(1);
 - (n) subsection 16(2);
 - (o) subsection 16(4);
 - (p) subsection 16(5);
 - (q) subsection 16(6);
 - (r) subsection 17(2);
 - (s) subsection 17(3);
 - (t) section 18;
 - (u) subsection 19(2);
 - (v) subsection 19(3);
 - (w) subsection 19(4);
 - (x) subsection 19(5);
 - (y) subsection 19(6);
 - (z) subsection 20(1).
- 3 Provisions of the *Telecommunications Service Provider (Customer Identity Authentication) Determination 2022*:
 - (a) section 8;
 - (b) paragraph 9(5)(a);
 - (c) paragraph 9(5)(b);

- (d) subsection 10(5);
 - (e) paragraph 10(8)(a);
 - (f) paragraph 10(8)(b);
 - (g) subsection 11(3);
 - (h) subsection 11(4);
 - (i) paragraph 11(7)(a);
 - (j) paragraph 11(7)(b);
 - (k) subsection 12(3);
 - (l) subsection 12(4);
 - (m) subsection 13(1);
 - (n) subsection 13(2);
 - (o) section 14;
 - (p) section 15;
 - (q) section 16.
- 4 Provisions of the *Telecommunications Service Provider (International Mobile Roaming) Determination 2019*:
- (a) subsection 7(1);
 - (b) subsection 7(2);
 - (c) subsection 7(6);
 - (d) subsection 7(7);
 - (e) subsection 7(8);
 - (f) subsection 8(2);
 - (g) subsection 8(5);
 - (h) subsection 8(6);
 - (i) paragraph 9(2)(a);
 - (j) paragraph 9(2)(b);
 - (k) paragraph 9(2)(c);
 - (l) subsection 9(4);
 - (m) subsection 9(5);
 - (n) subsection 9(6);
 - (o) subsection 10(2);
 - (p) subsection 10(5);
 - (q) subsection 10(6);
 - (r) subsection 11(2);
 - (s) subsection 11(3);
 - (t) subsection 12(1);
 - (u) subsection 12(2);
 - (v) subsection 12(3);
 - (w) subsection 12(4);
 - (x) subsection 12(5);
 - (y) subsection 13(2);
 - (z) subsection 13(5);

- (za) paragraph 13(6)(a);
- (zb) paragraph 13(12)(b).

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
amdt = amendment	pres = present
c = clause(s)	prev = previous
C[x] = Compilation No. x	(prev...) = previously
Ch = Chapter(s)	Pt = Part(s)
def = definition(s)	r = regulation(s)/rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
Div = Division(s)	rep = repealed
exp = expires/expired or ceases/ceased to have effect	rs = repealed and substituted
F = Federal Register of Legislation	s = section(s)/subsection(s)
gaz = gazette	Sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	Sdiv = Subdivision(s)
LIA = <i>Legislative Instruments Act 2003</i>	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
o = order(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

